24SMCV02748 24SMCV02748

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C08%2F10%2F2026

Source SHA-256: 26f19f21bc5346888d667560c1c2d0d4270181b2f1c9feb6fcd924551b5900b2

Case Number: 24SMCV02748 Hearing Date: August 10, 2026 Dept: 207

TENTATIVE
RULING

DEPARTMENT

207

HEARING DATE

August
10, 2026

CASE NUMBER

24SMCV02748

MOTION

Motion
for Entry of Judgment

MOVING PARTY

Plaintiff Zackary Chichelo

OPPOSING PARTY

none

BACKGROUND

This case arises from a business dispute concerning amounts allegedly owed pursuant to a shareholder agreement and promissory note.

The operative First Amended Complaint ("FAC") brought by Plaintiff Zackary Chichelo ("Plaintiff") against Defendants Pineapple Consolidated, Inc. ("Pineapple"); Goldstar Industries ("Goldstar"); and Matthew Feinstein ("Feinstein") alleges five causes of action for (1) breach of contract (against Pineapple & Feinstein); (2) open book account (against Pineapple and Feinstein); (3) breach of contract (against Goldstar and Feinstein); (4) open book account (against Goldstar and Feinstein); and (5) fraudulent inducement (against Pineapple and Feinstein).

Default was entered against Defendants on October 3, 2024, and judgment was entered on February 24, 2025.

On July 10, 2025, the Court granted Defendants Pineapple and Feinstein's unopposed motion to set aside/vacate the default and default judgment.

On August 13, 2025, the Court granted Plaintiff's motion for reconsideration its July 10 order, on the grounds that Plaintiff was never properly served with the motion to set aside/vacate. Accordingly, the Court re-scheduled the hearing on the motion to set aside/vacate and permitted opposition and reply briefs to be filed.

On September 15, 2025, after the re-scheduled hearing, the Court again granted Defendants Pineapple and Feinstein's motion to set aside/vacate the default and default judgment.

On April 21, 2026, the Court granted in part Plaintiff's motion for summary adjudication as to the first cause of action as to Pineapple only.

Plaintiff now moves for entry of judgment on the basis of the judgment still in effect as to Goldstar and the summary adjudication ruling. The motion is unopposed.

DISCUSSION

Plaintiff

argues that Default Judgment remained entered against Goldstar in the amount of $335,000. Not so. The Court vacated the judgment, which had been jointly entered as to all three Defendants, but vacated the entry of default as to the moving Defendants only. The Court cannot vacate a judgment in part without running afoul of the one final judgment rule.

Further, there is no basis for Plaintiff's assertion that judgment is appropriate against Goldstar in the amount of $335,000. The only claims alleged against Goldstar are the third and fourth causes of action, pursuant to which the Complaint seeks only $15,000. On a default judgment, the Court cannot award damages in excess of what is demanded in the operative complaint. (See Code Civ. Proc., § 580, subd. (a) ["The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint"]; Levine v. Smith (2006) 145 Cal.App.4th 1131, 1136-1137 ["when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint"].)

Thus, any default judgment against Goldstar is limited to the $15,000 demanded against it in the FAC, the $1,382.44 prejudgment interest thereon (as outlined in the first six entries on Plaintiff's request for default judgment), $840 in reasonable attorneys' fees, pursuant to Code of Civil Procedure section 1717.5 and Local Rule 3.214, and the $1,520.75 in costs for a total of $18,743.19, not $335,000, as Plaintiff asserts. Further, Goldstar would be jointly and severally liable for these attorneys' fees and costs.

With respect to Pineapple, the Court granted summary adjudication of the first cause of action only as to Pineapple only in the amount of $105,000 plus 25,000 shares of PECC stock.

Further, Plaintiff has not yet dismissed Feinstein or the second, fifth, or sixth causes of action. As such, this action remains pending, and entry of judgment is premature and inappropriate at this juncture.

CONCLUSION AND ORDER

For the foregoing reasons, the Court denies Plaintiff's motion for entry of judgment.

Plaintiff shall provide notice
of the Court’s ruling and file the notice with a proof of service forthwith.

DATED: August 10, 2026 ___________________________

Michael
E. Whitaker

Judge
of the Superior Court